IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
PRINCIPAL BENCH

Item No. 121
(CAA)-290(PB)/2017

IN THE MATTER OF:
M/s. Lakra Fabrics Pvt. Ltd. with M/s. Lakra Industries Ltd. .... Applicant/petitioner

Order under Section 230-232 of the Companies Act

Order delivered on 08.10.2018

Coram:
CHIEF JUSTICE (RTD.) M.M. KUMAR
Hon'ble President

Sh. S. K. MOHAPATRA,
Hon'ble Member (Technical)

PRESENTS:

For the Applicant/petitioner	: Ms. Chhavi, Adv.
For the OL	: Mr. Shubham Pandey, Adv.
For the RD(NR)	: Mr. C. Balooni, CP
For the ITD	: Ms. Easha Kadian, Adv. for Ms. Lakshmi Gurung, Standing Counsel for Income Tax Department

ORDER

Ld. Counsel for the RD and the Income Tax Department have stated that there are no objections. The Income Tax department has made some observations with regard to transferee company which would be surviving entity and still be under obligation to pay even after implementation of scheme.

Arguments heard. Order reserved.

Sd/-
(M.M.KUMAR)
PRESIDENT

Sd/-
(S. K. MOHAPATRA)
MEMBER (TECHNICAL)

08.10.2018
Ritu Sharma